CHAPTER 77 Special Provisions Relating to Certain Classes

Rationale of Special Provisions

In order to realise the objectives of equality and justice as laid down in the Preamble, the Constitution makes special provisions for the scheduled castes (SCs), the scheduled tribes (STs), the backward classes (BCs) and the Anglo-Indians. These special provisions are contained in Part XVI of the Constitution from Articles 330 to 342A. They are related to the following:

1. Reservation in Legislatures
2. Special Representation in Legislatures
3. Reservation in Services and Posts
4. Educational Grants
5. Appointment of National Commissions
6. Appointment of Commissions of Investigation

These special provisions can be classified into the following broad categories:

1. Permanent and Temporary — Some of them are a permanent feature of the Constitution, while some others continue to operate only for a specified period.
2. Protective and Developmental — Some of them aim at protecting these classes from all forms of injustice and exploitation, while some others aim at promoting their socio-economic interests.

SPECIFICATION OF CLASSES

The Constitution does not specify the castes or tribes which are to be called the SCs or the STs. It leaves to the President the power to specify as to what castes or tribes in each state and union territory are to be treated as the SCs and STs. Thus, the lists of the SCs or STs vary from state to state and union territory to union territory. In case of the states, the President issues the notification after consulting the governor of the state concerned. But, any inclusion or exclusion of any caste or tribe from Presidential notification can be done only by the Parliament and not by a subsequent Presidential notification. Presidents have issued several orders specifying the SCs and STs in different states and union territories and these have also been amended by the Parliament.[1]

Similarly, the constitution has not specified the classes of citizens who are to be called the socially and educationally backward classes, also known as Other Backward Classes (OBCs). The 102nd Amendment Act of 2018 provided that the President may with respect to any state or union territory specify the socially and educationally backward classes which shall for the purposes of the constitution be deemed to be socially and educationally backward classes in relation to that state or union territory. Later, the 105th Amendment Act of 2021 modified the above provision by providing that the President may with respect to any state or union territory specify the socially and educationally backward classes in the Central List which shall for the purposes of the central government be deemed to be socially and